

22STCV21063 22STCV21063

County: los-angeles

Division: Civil Law and Motion

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Case Number: 22STCV21063 Hearing Date: August 14, 2026 Dept: 406

ROBERT HOWARD,

Plaintiff,

v.

JOSEPH DUERR, et al.,

Defendants.

Case No.: 22STCV21063

Hearing Date: August 14, 2026

[TENTATIVE]

order RE:

Plaintiffs' motions to compel further
responses (CRS# 8440, 6406, 4884, 1494, 1059)

BACKGROUND

On August 26, 2021, Robert Howard, Jr.
(Howard) initially filed a lawsuit against Defendants Joseph Duerr and
Christopher Duerr.

On June 29, 2022, Cynthia Finerty, in her
capacity as conservator of Howard's estate and trustee of the Robert S. Howard

Jr. Trust; and RSH Properties I, LLC (RSH) (collectively, Plaintiffs) filed the operative First Amended Complaint against Defendants Joseph Duerr and Realty Advisors and Asset Managers, Inc. (RAAM).

The dispute arises from the following facts.

Howard is the settlor and sole beneficiary of a trust holding substantial assets. Howard, personally and through the trust and RSH, owns various commercial properties throughout California. Pursuant to a property management agreement in 2007, Howard retained RAAM to manage his and RSH's properties. The FAC alleges that the agreement was the result of undue influence and permitted Defendants to take advantage of Howard and embezzle his money.

On August 24, 2022, this Court granted Defendants' motion to compel arbitration pursuant to an arbitration provision in a 16-page version of the purported 2007 agreement.

Plaintiffs commenced arbitration with JAMS on January 9, 2023. Christopher Duerr was joined as a defendant in the arbitration. On February 14, 2026, the arbitrator issued a final award, finding the 16-page agreement to be void due to forgery. The arbitrator found that the governing agreement was instead a 9-page agreement. The arbitrator found Defendants liable for fraud, elder abuse, and other causes, and awarded Plaintiffs \$121 million in damages.

On May 12, 2026, the Court granted Plaintiffs' motion to confirm the arbitration award and entered judgment accordingly.

On July 2, 2026, Plaintiffs filed the instant five motions to compel Defendants' further responses to post-judgment discovery. Defendants filed a consolidated opposition on August 3, 2026.

CRS# 0285 was originally set for August 17, 2026. However, due to the identity of issues, CRS# 0285 is advanced and heard on this date.

LEGAL STANDARD

Upon receiving responses to its discovery

requests, the propounding party may move for an order compelling further responses if the responses are incomplete or evasive, or objections are without merit or too general. (Code Civ. Proc., §§ 2030.300(a), 2031.310(a), 2033.290(a).)

DISCUSSION

Plaintiffs' motions and separate statements set forth good cause for the subject requests and demonstrates the defect in Defendants' responses. Defendants do not challenge the substance of the motions or dispute that their initial responses were defective. Instead, Defendants contend that they merely needed more time to respond to the volume of requests. Because Plaintiffs refused Defendants' request for a two-week extension, Defendants asserted objections to preserve them. Defendants have now provided supplemental responses and produced documents. Therefore, the motions are moot.

CONCLUSION

Plaintiffs' motions to compel further responses are DENIED. Sanctions are denied as the parties acted with substantial justification.